capacity to organise for self-defence;
3. A ‘civilised’ State adheres to generally accepted international law, including the laws of war; it also maintains a domestic system of courts, codes and published laws, which guarantee legal justice for all within its jurisdiction, foreigners and native citizens alike;
4. A ‘civilised’ State fulfils the obligations of the international system by maintaining adequate and permanent avenues for diplomatic interchange and communication; and
5. A ‘civilised’ State, by and large, conforms to the accepted norms and practices of the ‘civilised’ international society; for example, *suttee (Sati),* polygamy and slavery were considered ‘uncivilised’, and therefore unacceptable.

The reference to ‘suttee/Sati’ in the proscriptions under the standard of civilisation is proof of the success of the Christian Missionaries in Bharat in having internationalised their stereotypes of Bharat. The fact that the above-mentioned requirements were rooted in Christendom is widely accepted by scholars of international law. It is also evident from these requirements that they necessitated a fundamental change in the political, legal, social and economic infrastructure of non-European nations in order for them to be accepted as civilised nations in the global order.

One of these changes was to have a constitution to prove a nation’s civilised credentials as a nation of laws. For instance, Gong points out that Japan adopted a constitutional form of government with representative institutions to impress the West and to convince it of its eligibility for membership in the international order. In fact, the Standard of Civilisation extended not just to the broad institutional framework but also to specific legal principles to be followed by national courts. This was evident from the fact that principles of ‘natural justice’, ‘good conscience and morality’, while appearing to be capable of accommodating the subjective values of each society, in reality translated to application of European values and ethics, or at the very least, treating them as benchmarks to be measured against. This practice continues to date in Bharat as Indian courts continue to refer to and rely on English common law to distil principles of natural justice, which are widely applied to a range of legal issues.

This was a consequence of, among other things, using international law as a means to treat the Standard of Civilisation as a juridical/legal